Proposed Amendments to Appear
on the November 3, 2026 General Election Ballot
(ballot text)

Constitutional Amendment 1:

"PROPOSING AN AMENDMENT TO ARTICLE 4, SECTION 22 OF THE CONSTITUTION OF NEW MEXICO TO REQUIRE THE GOVERNOR TO PROVIDE VETO MESSAGES ON ALL BILLS VETOED IN WHOLE OR IN PART AND TO PROVIDE THAT ALL BILLS PASSED BY THE LEGISLATURE AND NOT ACTED ON BY THE GOVERNOR WILL BECOME LAW."

Constitutional Amendment 2:

"PROPOSING TO AMEND ARTICLE 7, SECTION 1 OF THE CONSTITUTION OF NEW MEXICO TO REMOVE THE REQUIREMENT THAT SCHOOL ELECTIONS BE SEPARATE FROM PARTISAN ELECTIONS."

Constitutional Amendment 3:

"PROPOSING AN AMENDMENT TO ARTICLE 12, SECTION 13 OF THE CONSTITUTION OF NEW MEXICO TO ESTABLISH NOMINATING COMMITTEES TO PROVIDE LISTS OF NOMINEES TO THE GOVERNOR FOR APPOINTMENT OF NONSTUDENT MEMBERS TO THE BOARDS OF REGENTS OF STATE EDUCATIONAL INSTITUTIONS; PROVIDING THAT STUDENT MEMBERS OF BOARDS OF REGENTS SHALL BE APPOINTED FROM A LIST PROVIDED BY AN ELECTED STUDENT GOVERNING BODY OF THE INSTITUTION; PROVIDING THAT, EXCEPT FOR A STUDENT MEMBER, MEMBERS OF THE BOARDS OF REGENTS SHALL NOT HAVE CHANGED THEIR POLITICAL PARTY REGISTRATION IN THE TWELVE MONTHS PRECEDING APPOINTMENT."

Constitutional Amendment 4:

"PROPOSING TO AMEND ARTICLE 4, SECTION 10 OF THE CONSTITUTION OF NEW MEXICO TO ALLOW LEGISLATIVE COMPENSATION THAT IS LIMITED TO THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO, TO REQUIRE LEGISLATIVE COMPENSATION TO BE REDUCED IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO FALLS, TO ALLOW LEGISLATIVE COMPENSATION TO BE INCREASED ONLY IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO RISES AND TO PROVIDE FOR DELAYED IMPLEMENTATION."

General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 general election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

This publication contains a summary and the full text of the joint resolutions proposing the amendments, as well as background information and summaries of arguments for and against the passage of the amendments. New language that is proposed for insertion in the full text of the joint resolutions is shown by underscoring, and language that is proposed for deletion is shown within brackets.

While the full text of the proposed amendments appears in this publication, the title, which appears in capital letters at the top of each joint resolution, is the *only* language that will appear on the ballot.

Disclaimer

The arguments for and against the proposed constitutional amendments in this publication do not necessarily reflect legislative deliberations undertaken at the time of the passage of the proposed amendments. They represent suggestions from the Legislative Council Service staff of arguments in support of and in opposition to the proposed amendments. No claim is made for the validity or consistency of these arguments. This is not an exhaustive list of all cogent and valid arguments. No attempt has been made to provide the same number of arguments for or against a particular

HOUSE JOINT RESOLUTION 5
57TH LEGISLATURE - STATE OF NEW MEXICO - SECOND SESSION, 2026

A JOINT RESOLUTION
PROPOSING TO AMEND ARTICLE 4, SECTION 10 OF THE CONSTITUTION OF NEW MEXICO TO ALLOW LEGISLATIVE COMPENSATION THAT IS LIMITED TO THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO, TO REQUIRE LEGISLATIVE COMPENSATION TO BE REDUCED IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO FALLS, TO ALLOW LEGISLATIVE COMPENSATION TO BE INCREASED ONLY IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO RISES AND TO PROVIDE FOR DELAYED IMPLEMENTATION.

BE IT RESOLVED BY THE LEGISLATURE OF THE STATE OF NEW MEXICO:

SECTION 1. It is proposed to amend Article 4, Section 10 of the constitution of New Mexico to read:

"A. Each member of the legislature [~~shall~~] is entitled to receive:

[~~A.~~] (1) per diem at the internal revenue service per diem rate for the city of Santa Fe for each day's attendance during each session of the legislature and the internal revenue service standard mileage rate for each mile traveled in going to and returning from the seat of government by the usual traveled route, once each session as defined by Article 4, Section 5 of this constitution;

[~~B.~~] (2) per diem and mileage at the same rates as provided in [~~Subsection A~~] Paragraph (1) of this [~~section~~] subsection for service at meetings required by legislative committees established by the legislature to meet in the interim between sessions; and

[~~C. no other~~] (3) compensation [~~perquisite or allowance~~] as provided by law for legislative service in an amount equal to the annual median household income for New Mexico as initially determined and adjusted thereafter by the rise or fall of the median household income for New Mexico.

B. The provisions of Paragraph (3) of Subsection A of this section are effective beginning with members seated and sworn in for the fifty-ninth legislature."

SECTION 2. The amendment proposed by this resolution shall be submitted to the people for their approval or rejection at the next general election or at any special election prior to that date that may be called for that purpose.

Note: underscored material = new language proposed for insertion [~~bracketed material~~] = existing language proposed for deletion

SUMMARY of Proposed Constitutional Amendment 4

Constitutional Amendment 4 proposes to amend Article 4, Section 10 of the Constitution of New Mexico to entitle each member of the legislature to compensation for the member's service in addition to the per diem and mileage reimbursement to which the member is currently entitled. The proposed amendment would go into effect when the members of the Fifty-Ninth Legislature are sworn in and seated in 2029 and would allow the legislature to enact a law that provides compensation for each legislator in an amount equal to the annual median household income for New Mexico, which is approximately $68,000 in 2026. Also, the proposed amendment would remove the prohibition on legislators receiving other perquisites or allowances.

BACKGROUND AND INFORMATION

Required Legislative Service

New Mexico has a part-time legislature that consists of 112 members (70 representatives and 42 senators). Each legislator is constitutionally required to be present at each regular legislative session and at any special or extraordinary legislative session called to order. Regular legislative sessions are held once a year and last 60 days in odd-numbered years and 30 days in even-numbered years. Both a special session and an extraordinary session cannot exceed 30 days; however, special sessions called to order during the last decade have typically lasted less than a week, and an extraordinary session has not been called to order since 2002.

All legislative service during the interim is voluntary — some legislators participate in interim committees and some do not. Additionally, many legislators provide constituent services and engage in other activities in their official capacity, such as town hall meetings and community events, when the legislature is not in session. Since 2025, each legislator has had the ability to hire a full-time district legislative aide to assist with activities related to the legislator's duties as a legislator.

Because the legislature is part time, most legislators hold outside employment. Legislators currently serving have diverse professional backgrounds; some are lawyers, doctors, business executives, farmers, teachers, engineers, consultants and retirees.

Per Diem and Mileage

While legislators do not currently receive a salary, they are entitled to per diem and mileage for regular, special and extraordinary sessions, for work on interim committees and for attendance at certain meetings of regional and national legislative organizations. Legislators receive per

diem at the federal rate for Santa Fe for their attendance during session and at interim committee meetings held in Santa Fe and also throughout the state. For 2026, the per diem rate for Santa Fe is approximately $247. Mileage is reimbursed at the standard federal rate ($.725) for each mile traveled for one trip to Santa Fe and one trip back home each legislative session and one trip to and one trip from each interim committee meeting.

Legislative Retirement

Since 1963, each New Mexico legislator has had the ability to participate in the state employee pension system established pursuant to the Public Employees Retirement Act. Current legislators have the option to participate in the "state legislator member coverage plan 2". Under this plan, a legislator must "fulfill the obligation of the position of a legislator for more than six months of the calendar year and participate in the legislative session" and make a $1,000 contribution for each year of legislative service. "Normal retirement age" for a legislator is 65 years of age with five or more years of legislative service or any age with 10 or more years of legislative service.

For example, a representative elected to office at age 25 who completes 10 years of legislative service and contributes a total of $10,000 can retire at age 35 and would receive $31,122 each year (or $2,593.50 per month) for the remainder of the representative's life. The representative may also designate a beneficiary to receive a reduced lifetime pension after the representative dies. Based on recent data from the Public Employees Retirement Association, 110 current legislators are contributing to the state's pension system.

▸ ARGUMENTS FOR

1. Legislative compensation could result in legislators spending more time on legislative work and less time on outside employment.

Because legislators currently receive only per diem and mileage for their legislative service, some may have to prioritize outside employment and be less able to take time off for legislative work during the interim. Paying each legislator a salary equal to the median household income in New Mexico would give legislators the financial ability to either take more time off from their outside employment or even forego outside employment altogether. This would allow legislators to devote more time to legislative work and be more accessible to their constituents.

2. Legislative compensation would diversify the pool of potential legislators.

Legislators currently serve as volunteers, so many legislators have to balance the demands of outside employment with the responsibilities of elected office. Legislators who have outside employment are required to take off either 30 or 60 days each year, at minimum, to carry out their constitutional duties. Even with the provision of per diem and mileage, not being able to fully engage in outside employment during session is a significant financial burden. In New Mexico, the per capita annual income in 2026 is approximately $36,000, meaning most New Mexicans cannot consider running for the legislature because they do not have the financial ability to take one or two months off from work each year and still make ends meet. Paying legislators a salary could alleviate or eliminate the current financial burden of legislative service and allow for more New Mexicans to run for seats in the legislature.

3. Legislative compensation could improve the balance in state government.

Like the government of the United States, New Mexico's government is divided into three separate branches that are supposed to be equal in exercising their constitutional duties: the legislature makes the laws; the executive carries out the laws; and the judiciary interprets the laws. From a practical sense, because New Mexico legislators are subject to financial burdens that officers of the other branches are not, the legislature as a whole and its individual members are unable to dedicate the same amount of time necessary to be truly coequal with the executive and judiciary. Paying each legislator a salary would strengthen the legislature by allowing its members the financial flexibility to be more responsive to the issues of the day. Specifically, financial flexibility could allow legislators to be more proactive in addressing policy issues and overseeing executive agencies in the interim and be better prepared for the subsequent session. The financial flexibility could strike a better balance among the co-equal

branches of government by allowing the legislature to be more proactive year-round and not just during session.

4. <u>Legislative compensation provides a second of three steps in professionalizing the legislature.</u>

Studies have identified resources, compensation and length of sessions as the necessary elements of a professional legislature. State legislators now have district legislative aides as resources for the legislative business of the respective districts. Legislative compensation could provide legislators with the ability to spend more time as active participants in state government through interim committees and possibly longer sessions. The length of sessions continues to be discussed by the legislature, and legislative compensation could provide the flexibility to allow legislators to participate in longer sessions that may otherwise affect their loss of income.

ARGUMENTS AGAINST

1. <u>Legislative salaries could provide legislators with incumbency advantages not available to other candidates.</u>

Legislative compensation could create advantages in fundraising and campaigning for legislators who would continue receiving compensation while other candidates in primary or general elections may have to forego income from regular employment to raise funds or campaign. Incumbent legislators could rely on legislative campaign funds to pay for campaign expenses while continuing to receive legislative compensation and per diem and mileage reimbursement. Candidates for those positions would be trying to raise funds to sustain a campaign while possibly having to forego income and other employment opportunities and benefits.

2. <u>The amendment would provide for a legislative salary that is disproportionate when compared to other states.</u>

Technically, New Mexico is the only state that does not pay legislators a "salary"; however, legislative salaries in some states amount to much less than what New Mexico legislators receive in per diem and pension benefits. For example, New Hampshire legislators receive an annual salary of $100, are not entitled to per diem and are not eligible for any kind of retirement benefit, so in addition to donating their time for legislative service, New Hampshire legislators also have to donate their money to cover their expenses for traveling, lodging and meals during their legislative service. In Wyoming and Utah, legislators receive a salary of $150 and $301 per legislative day, respectfully, and both states allow legislators to receive per diem. Wyoming does not have a legislative retirement system, but Utah does; however, the Utah legislative retirement system is less generous than New Mexico's and has more restrictions.

According to the National Conference of State Legislatures, the average base salary for a state legislator in 2024 was $44,320. More populated states with higher costs of living tend to pay higher annual salaries. For example: New York legislators are paid $142,000; California legislators are paid $132,000; and Michigan legislators are paid $72,000. The New York legislature is part time, but its members are expected to maintain full-time constituent offices in their districts and, although they are allowed to have outside employment, their earnings cannot exceed $35,000 per year. The California legislature is full time, and its members are essentially prohibited from having outside employment and are subject to strict conditions on their legislative salaries. The Michigan legislature is full time, but its members are allowed to have outside employment.

In Arizona, each legislator receives an annual salary of $24,000 as well as per diem. Arizona legislative sessions are scheduled to last 100 days each year, but its constitution permits a session to extend beyond 100 days. Massachusetts and Pennsylvania have full-time legislatures, while Alabama and South Dakota have part-time legislatures, and each of these states pay legislative salaries based on median household income and generally allow their legislators to have outside employment.

Constitutional Amendment 4 would provide legislative salaries that may be disproportionate to legislative salaries in most other states. The amendment does not require additional legislative service beyond the current minimum requirement of 30 or 60 days each year for regular sessions. Also, the amendment opens the door for additional employee-type benefits for legislative service and imposes no restrictions on outside employment or outside earnings.

3. <u>Constitutional Amendment 4 does not address a number of issues that may have to be addressed by subsequent legislation or constitutional amendment.</u>

It may be necessary for the legislature to address issues such as the following, which is not an exhaustive list:

(1) a definition of "legislative service"; e.g., attendance at meetings of interim committees to which members have been appointed;

(2) whether the median household income is determined by the commonly accepted Current Population Survey Annual Social and Economic Supplement conducted by the United States Census Bureau or some other source;

(3) employee benefits or other perquisites or allowances that may be allowed for legislators;

(4) whether the state and legislator contributions to the retirement fund will remain as they are now or whether they will mirror the state employer and state employee contribution levels, including any other changes to existing law that may conflict with the proposed constitutional amendment; and

(5) whether legislators may receive per diem for interim committee meetings held in the same city or town where they reside.